

Panna Lal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 7 June 2012 · Writ-C No. 29656 of 2012 · **Writ disposed of; arrears in three instalments; recovery stayed; disconnection to be finalised.**

HEADNOTE

Clause 6.14 of the U.P. Electricity Supply Code, 2005 permits the Executive Engineer or a higher officer to extend instalment facility to consumers in financial distress. Where the consumer was ready to pay bill arrears and the department had no objection, the Court directed payment in three equal instalments, stayed the recovery citation pending timely payment (with 50% collection-charge waiver if paid on time), and directed the Executive Engineer to finalise a pending permanent-disconnection application within 15 days.

FACTUAL SUMMARY

Panna Lal held a domestic electricity connection. On 29 April 2010 he applied to the Executive Engineer for permanent disconnection and deposited Rs 1,000, but the application was not processed and bills continued. A recovery citation dated 2 March 2012 sought Rs 33,251. He sought quashing of the citation and a mandamus to decide the disconnection and accept actual dues, pleading financial distress and asking to pay arrears in easy instalments. The department had no objection if dues were paid in instalments.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for financial distress

HOLDING

Paragraph 6.14 of the U.P. Electricity Supply Code, 2005 provides that the Executive Engineer or any officer higher in rank may extend instalment facility to customers in financial distress. The petitioner being ready to pay outstanding bill arrears, the Court directed payment of the entire arrears in three equal instalments (on or before 31.7.2012, 30.9.2012 and 30.11.2012), with 50% of collection charges waived if paid on time and the respondents free to recover the entire amount on default; stayed the recovery proceeding pending timely instalments; and, the petitioner having already applied and paid for permanent disconnection on 29.4.2010, directed respondent 4 to finalise that disconnection within 15 days. ¶ 5-7

PRINCIPLE TAGS

instalment-facility-clause-6.14-for-financial-distress Pleaded poor financial condition and readiness to pay, with the department's lack of objection, engaged clause 6.14's instalment facility for customers in financial distress; the Court itself scheduled three instalments rather than remitting the application. ¶ 4-5

installment-payment-clause-6.14 Arrears of electricity bills directed to be paid in three equal instalments under clause 6.14, with stay of the recovery citation and 50% collection-charge waiver if paid on time. ¶ 5-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER BILLS RAISED AFTER THE 29.4.2010 PERMANENT-DISCONNECTION APPLICATION, OR THE RS 33,251 CITATION FIGURE, WERE THE LEGALLY PAYABLE ACTUAL DUES

¶ 2-3,5,7

